

Sidumo v Rustenburg Platinum Mines Ltd

SIDUMO AND ANOTHER v RUSTENBURG PLATINUM MINES LTD AND OTHERS 2008 (2) SA 24 (CC)

Holding

The PAJA standard and the s 145 LRA review grounds must be read consistently with the Constitution. The core enquiry on review of a CCMA award is: Is the decision reached by the commissioner one that a reasonable decision-maker could not reach? Commissioners must consider the totality of circumstances in unfair dismissal disputes, including the Code of Good Practice: Dismissal.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —